

STATE OF NEW YORK

9211--A

IN SENATE

February 13, 2026

Introduced by Sen. BYNOE -- read twice and ordered printed, and when printed to be committed to the Committee on Consumer Protection -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the general business law, in relation to cancellation of contracts for health club services

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Paragraphs (b), (c) and (d) of subdivision 4 of section 624
2 of the general business law, as added by chapter 537 of the laws of
3 2024, are amended and a new paragraph (e) is added to read as follows:

4 (b) Where a contract for services is due for renewal on an annual
5 basis, such contract for services following the initial contract shall
6 provide that such health club shall accept cancellation of renewal of a
7 membership, by the buyer or the buyer's estate, provided such request is
8 made within fifteen business days after such renewal takes effect. Where
9 a contract for service is due for renewal on a monthly basis, such
10 contract for services following the initial contract shall provide that
11 such health club shall accept cancellation of renewal of a monthly
12 membership, by the buyer or the buyer's estate provided such request is
13 made [~~within three~~] up to the business [~~days after~~] day before such
14 renewal takes effect.

15 (c) Such health club shall accept notice of cancellation [~~of a member-~~
16 ~~ship through methods including, but not limited to, website, electronic~~
17 ~~mail, telephone, mail, or in person~~] using a simple cancellation mech-
18 anism that is as easy to use as the mechanism that the consumer used to
19 provide consent and that is through the same medium that the consumer
20 used to provide consent.

21 (d) [~~If a health club allows a buyer to enter into a contract for~~
22 ~~services through a website, such~~] Such health club shall accept a notice
23 of cancellation [~~of such contract through such website in addition to~~
24 ~~the methods provided pursuant to paragraph (c) of this subdivision~~] at
25 any time through all mediums by which the health club allows a consumer
26 to provide affirmative consent to the health club.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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1 (e) Provided further that, where consent to the health club agreement
2 was obtained in person, in addition to offering cancellation where prac-
3 tical via an in-person method similar to that the user used to consent,
4 the business shall, at the minimum, offer cancellation through telephone
5 communication, cellular communication, or an online mechanism.

6 § 2. This act shall take effect immediately.